

		Defendant’s evidence establishes it acted diligently and in good faith. The complaint alleges Plaintiff tripped and fell in a parking lot owned by Defendant due to the grading of the slope at issue that exceeded maximum incline grades permitted under the California Building Code. (See Complaint, p. 6:4-14.) Defendant states that less than two months before the alleged incident, it contracted South Coast Paving and ADA Inspection to partially repave the parking lot. (Vermani Decl., ¶¶ 4, 9, Ex. B.) Defendant confirmed the grounds for filing a cross-complaint after it completed its investigation into the factual circumstances surrounding the complaint, including the contractual obligations between Defendant and South Coast Paving and ADA Inspection. (Vermani Decl., ¶¶ 7-8.) Defendant filed the instant motion on 3/9/26, less than three months after it filed its answer. Plaintiff has not opposed the motion and, therefore, has not established Defendant acted in bad faith. The court finds granting leave will be in the interest of justice and serve the purpose of cross-complaints: “to have a complete determination of a controversy among the parties in one action, thus avoiding circuity of action and duplication of time and effort.” (<i>City of Hanford v. Superior Court</i> (1989) 208 Cal.App.3d 580, 587.) The motion is granted. Defendant is ordered to file its cross-complaint within five (5) days.
10.	GUEVARA VS. ALHALLAQ 2025-01492960	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff Jens Kevin Guevara’s motion for leave to file a second amended complaint is CONTINUED to 9/15/26 at 9:00 a.m., in Dept. 32. Plaintiff has not submitted a proof of service showing the moving papers were served on Defendants. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As no response or opposition was filed the Court cannot deem this defect waived. Plaintiff is ORDERED to file a Proof of Service showing the moving papers were served on Defendants at least 5 court days before the CONTINUED hearing.
11.	ERBRICK VS. SPLITZ BY AGGIE 2025-01507047	MOTION TO SET ASIDE/VACATE DEFAULT AND JUDGMENT Defendants Gregg Hale and Splitz by Aggie’s Motion to Set Aside Default is DENIED. <u>Code of Civil Procedure § 473</u>